

MASTER SERVICES AGREEMENT

AsterPeak Cloud Services Pvt. Ltd. ↔ Northstar Retail Technologies Pvt. Ltd.

Agreement ID	MSA-2026-014
Effective Date	15 January 2026
Customer	Northstar Retail Technologies Pvt. Ltd., Bengaluru, Karnataka
Supplier	AsterPeak Cloud Services Pvt. Ltd., Hyderabad, Telangana
Commercial Owner	Procurement & Technology, Northstar

This Master Services Agreement (the “Agreement”) is entered into as of the Effective Date by and between Northstar Retail Technologies Pvt. Ltd. (“Customer”) and AsterPeak Cloud Services Pvt. Ltd. (“Supplier”). The parties intend this Agreement to govern cloud engineering, managed platform operations, and related professional services.

1. Scope of Services

Supplier will provide cloud infrastructure engineering, managed Kubernetes operations, application observability, incident response support, and professional services described in mutually executed Statements of Work (“SOWs”).

No SOW may amend this Agreement unless it expressly identifies the section being amended and is signed by authorized representatives of both parties.

2. Service Levels

For production workloads covered by an active SOW, Supplier will target monthly service availability of 99.90%, excluding scheduled maintenance and Customer-caused outages.

Severity-1 incidents will receive an initial response within thirty (30) minutes, twenty-four hours a day, seven days a week.

3. Fees and Invoicing

Supplier will invoice monthly in arrears unless a SOW states otherwise. Each invoice must reference the applicable purchase order and identify the service period.

Customer may dispute any invoiced amount in good faith by written notice within fifteen (15) days after receipt. The parties will work promptly to resolve a disputed amount.

4. Payment Terms

4.1 Customer will pay all undisputed amounts in United States dollars.

4.2 Supplier will submit invoices electronically to ap@northstar-retail.example.

4.3 Undisputed invoice amounts are due thirty (30) calendar days after Customer’s receipt of a correct invoice. A term printed solely on an invoice, purchase order acknowledgement, portal page, or other Supplier form does not modify this Section 4.3.

5. Taxes

Fees are exclusive of applicable indirect taxes. Supplier is responsible for taxes based on its income, payroll, or personnel. Customer may withhold taxes where required by law and will provide reasonable evidence of withholding.

6. Confidentiality

Each party will protect the other party’s Confidential Information using at least the same degree of care it uses for its own information of similar sensitivity, and no less than reasonable care.

Confidentiality obligations survive termination for three (3) years, except that trade secrets remain protected for as long as they qualify as trade secrets under applicable law.

7. Data Protection and Security

Where Supplier processes personal data on Customer’s behalf, the parties will execute the Data Processing Addendum identified as DPA-2026-014-A.

Supplier will maintain administrative, physical, and technical safeguards appropriate to the nature of the services and will notify Customer without undue delay after confirming a Security Incident involving Customer Data.

8. Intellectual Property

Each party retains ownership of intellectual property it owned or developed independently of this Agreement. Upon full payment, Customer owns deliverables specifically identified in a SOW as "Customer-Owned Deliverables," excluding Supplier Background Technology.

Supplier grants Customer a perpetual, worldwide, non-exclusive license to Supplier Background Technology embedded in a Customer-Owned Deliverable to the extent necessary for Customer to use that deliverable.

9. Term and Termination

9.1 This Agreement begins on the Effective Date and continues for two (2) years unless earlier terminated under this Section.

9.2 Either party may terminate this Agreement for convenience on sixty (60) days' prior written notice.

9.3 Either party may terminate for material breach if the breach remains uncured for thirty (30) days after written notice, except breaches not reasonably capable of cure.

10. Limitation of Liability

10.1 Except for Excluded Claims, each party's aggregate liability arising out of or relating to this Agreement will not exceed two hundred fifty thousand U.S. dollars (USD 250,000).

10.2 "Excluded Claims" means fraud, willful misconduct, breach of confidentiality, infringement or misappropriation of the other party's intellectual property rights, and amounts payable under a party's indemnification obligations.

10.3 Neither party will be liable for indirect, incidental, special, exemplary, punitive, or consequential damages, or for lost profits or lost revenues, except to the extent included in a third-party claim covered by an indemnity.

11. Indemnification

Supplier will defend Customer against third-party claims alleging that the Services, when used as authorized, infringe a third party's intellectual property rights, and will pay damages finally awarded or agreed in settlement.

Customer will promptly notify Supplier of an indemnified claim and provide reasonable cooperation. Supplier may not settle a claim in a manner that admits fault by Customer or imposes a non-monetary obligation on Customer without Customer's written consent.

12. Notices

Formal notices under this Agreement must be in writing and delivered by nationally recognized courier or email with delivery confirmation to the addresses below.

Customer: Legal Department, Northstar Retail Technologies Pvt. Ltd., 8th Floor, Orion Business Park, Outer Ring Road, Bengaluru 560103, Karnataka; legal@northstar-retail.example.

Supplier: General Counsel, AsterPeak Cloud Services Pvt. Ltd., 5th Floor, Meridian Tech Centre, HITEC City, Hyderabad 500081, Telangana; legal@asterpeak-cloud.example.

13. Order of Precedence

If there is a conflict among documents, the following order controls: (a) a signed amendment that expressly modifies this Agreement; (b) this Agreement; (c) an executed SOW; and (d) an invoice, purchase order acknowledgement, portal entry, or other operational document.

An invoice does not amend this Agreement unless it is separately signed by both parties and expressly states that it is an amendment to this Agreement.

14. Governing Law

This Agreement is governed by the laws of India. Subject to the dispute-resolution procedure below, courts located in Bengaluru, Karnataka have exclusive jurisdiction.

Before filing litigation, senior representatives of the parties will meet in good faith for at least ten (10) business days to attempt resolution.

15. Entire Agreement

This Agreement, together with executed SOWs, signed amendments, and the referenced Data Processing Addendum, constitutes the entire agreement between the parties concerning its subject matter and supersedes prior proposals and discussions.

AUTHORIZED SIGNATURES

NORTHSTAR RETAIL TECHNOLOGIES PVT. LTD.

By: Priya Menon

Title: VP, Procurement

Date: 15 January 2026

ASTERPEAK CLOUD SERVICES PVT. LTD.

By: Arjun Rao

Title: Chief Operating Officer

Date: 15 January 2026

SCHEDULE 1 - SERVICE & COMMERCIAL CONTACTS

This Schedule is administrative and does not amend the substantive obligations of the Agreement.

Function	Customer Contact	Supplier Contact
Commercial owner	Priya Menon VP, Procurement	Arjun Rao Chief Operating Officer
Contract notices	legal@northstar-retail.example	legal@asterpeak-cloud.example
Invoice submission	ap@northstar-retail.example	billing@asterpeak-cloud.example
Service desk	cloudops@northstar-retail.example	support@asterpeak-cloud.example
Severity-1 escalation	Technology Duty Manager	24x7 NOC Duty Manager
Primary billing cycle	Monthly in arrears	Monthly in arrears
Purchase order	PO-NT-260118	Reference on each invoice

For avoidance of doubt, Schedule 1 is provided for routing and administration only. If any contact or purchase-order information changes, that administrative update does not modify Sections 4, 9, 10, or 13.